

Indemnity Bond Format

Indemnity Bond in lieu of Bank Guarantee for Security Deposit/ Advance Paid/ Performance of Contract

(Strike out which is not applicable)

(To be printed on applicable Non-Judicial Stamp Paper)

This deed of Indemnity is made and executed on this ____ day of ____ Month and ____ year, by and between:

M/s. *(Name of the PSU, with Incorporation, Address, & Authorised Signatory details to be included)*, hereinafter referred to as 'Indemnifier' which expression shall, unless repugnant to the context or meaning thereof, include its successors, administrators, representative and assignees;

in favour of

M/s. HINDUSTAN AERONAUTICS LIMITED, a Maharatna CPSE, under Department of Defence Production, Ministry of Defence, having its Registered Office situated at #15/1, Cubbon Road, Bangalore - 560 001, hereinafter referred to as the 'Indemnified' which expression shall unless repugnant to the context or meaning thereof, include its successors and assignees witnesses as to.

Whereas the Indemnified herein has awarded to the Indemnifier herein a Contract for _____ *(please specify the purpose of contract/SoW)* on the terms and conditions set out inter alia in the Contract vide Contract No. _____, dated: _____, for a total value of the Contract being Rs. _____/- *(specify in words also)* including applicable taxes (GST), out of which 5% of the total Contract value excluding applicable taxes (GST), which shall be Rs. _____/- *(specify in words also)* is to be submitted by way of Bank Guarantee towards Security Deposit/Advance paid/for Performance of Contract *(strike out which is not applicable)*. As the Indemnifier being a Public Sector Undertaking and in line with clause/Para ____ of Terms and Conditions of the said Contract a Bank Guarantee is to be submitted by way of Indemnity Bond in lieu of Bank Guarantee towards Security Deposit/Advance paid/for Performance of Contract *(strike out which is not applicable)*.

That in case, if the contract is not executed to the entire satisfaction of Indemnified, then this Indemnity Bond issued in lieu of Security Deposit/Advance paid/for Performance of Contract *(strike out which is not applicable)* shall be enforced and the Indemnifier shall indemnify the Indemnified to the extent of the agreed value of Rs. _____/- *(specify in words also)*, besides initiation of risk purchase action if allowed in the Contract. This Indemnity Bond shall come into force from the date of execution and shall remain valid up to 60 days after completion of the contractual scope of work/requirement successfully to the complete satisfaction of Indemnified, which date of completion shall include any time extension of schedule of completion of Contract.

That the Indemnifier hereby irrevocably agrees to indemnify the Indemnified that in the event of any loss or damage caused to or suffered or would be caused to Indemnified by reason of any breach by the Indemnifier of any one of the terms and conditions contained in the said Contract or by reason of the Indemnifier's failure to perform the said contract, the indemnifier shall as may be deemed necessary if applicable, repair the defective work or stores, free of cost, within a reasonable time specified by the Indemnified or reimburse the pro-rata cost of the work/stores to the extent a life not achieved as per the guarantee or supply a spare/stores for the defective portion only free of cost or refund of Advance amount received in respect of the obligations of the Contract emanated from the said Contract already referred, to the extent of Rs. _____/- *(specify in words also)*.

²⁸⁵ (Annexure 37, an additional/new annexure is included vide Amendment no. 3 Dt. 01-04-2026)

This Indemnity Bond is Valid till date _____ or till completion of the contractual scope of work/requirement successfully to the complete satisfaction of Indemnified, which date of completion shall include any time extension of schedule of completion of contract, whichever occurs earlier.

For M/s _____

(Authorised Signature with Name and Designation)

Place: _____

Date: _____

Company Seal

Witnesses:

1. _____

(Signature with Name, Designation & Address)

2. _____

(Signature with Name, Designation & Address)